

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 09/02/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=N0V1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

**1. 9:00 AM CASE NUMBER: C22-02125
CASE NAME: SAVANNAH THOMPSON VS. JOHN MUIR HEALTH**

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference ("CMC") is **vacated**.

2. 9:00 AM CASE NUMBER: C23-02436

CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This CMC trails the hearings for Lines 9 and 10. Parties are ordered to appear in person or remotely via Zoom, unless the tentative rulings for both Lines 9 and 10 are uncontested. If the tentative rulings are uncontested, the CMC is continued to December 24, 2026 at 8:30 a.m. in Dept. 16 for a trial setting conference. Parties are ordered to meet and confer regarding trial date availability.

3. 9:00 AM CASE NUMBER: C25-00925

CASE NAME: KURTIS MILLHOLLIN VS. MICHAEL ALLIO

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

Appearance required. Remote appearance is authorized. Plaintiff shall appear prepared to address the status and disposition of the remaining causes of action (first cause of action for fraud and fourth cause of action for unjust enrichment against Defendant Allio) following the Court's grant of summary adjudication on the second cause of action, so that a judgment may be entered. See Line 18 below.

4. 9:00 AM CASE NUMBER: C25-03012

CASE NAME: I'YOSHI BARNES VS. DOES 1 TO 30

*FURTHER CASE MANAGEMENT CONFERENCE FCMC TO TRAIL HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S COMPLAINT

FILED BY:

TENTATIVE RULING:

This CMC trails the hearing for Line 19. The Parties are ordered to appear in person or remotely via Zoom for the CMC, unless the tentative ruling for Line 18 is uncontested. If the tentative ruling is uncontested, the CMC is continued to February 25, 2027 at 8:30 in Dept. 16. The Parties are ordered to meeting and confer to discuss alternative dispute resolution.

Law & Motion

5. 9:00 AM CASE NUMBER: C22-02125

CASE NAME: SAVANNAH THOMPSON VS. JOHN MUIR HEALTH

*HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION & PAGA SET BY THE COURTROOM

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Savannah Thompson, on behalf of herself and persons similarly situated, move for Final Approval of the Class Action Settlement and Award of Attorney's Fees to Class Counsel. The Motion is **granted** as set forth herein.

Background

This action arises from allegations that Defendant John Muir Health, Inc. ("JMH") charged unconscionable "chargemaster" prices for a routine diagnostic urine test (the "Service"), pricing it at \$6,095.70 in 2022, which is almost 100 times the Medicare-allowed amount. As a result of this litigation, JMH reduced the price to \$567 effective 2023. On March 21, 2025, the court certified a class of 289 members with claims under the Consumer Legal Remedies Act ("CLRA") and Unfair Competition Law ("UCL"), including a subclass of 63 members with additional Rosenthal Fair Debt Collection Practices Act claims.

Following class certification, the parties engaged in direct, arm's-length negotiations and reached a

settlement providing complete refunds or credits to Class Members for all out-of-pocket charges paid or owed for the Service, restoring them to the financial position they would have occupied had the charge been zero after accounting for insurance benefits. The 63 Rosenthal Act subclass members receive an additional \$750 each for release of those claims. The Settlement also includes injunctive relief requiring JMH to maintain the reduced chargemaster pricing for the Service through 2027.

The court granted preliminary approval on December 12, 2025, and ordered notice to the Class. Notice was accomplished through direct-mailed postcard notices to 289 Class Members, reaching 249, with a dedicated website containing all required information. The notice program has concluded with only one Class Member opting out and no objections received.

The aggregate Settlement benefits total \$696,266.39, comprising \$59,483.22 in cash refunds to 46 Class Members and \$636,783.17 in credits against outstanding account balances for 243 Class Members. Any residual funds from uncashed checks will be distributed *cy pres* to Bay Area Legal Aid. All Class Members who did not opt out will automatically receive Settlement benefits.

JMH separately agreed to pay settlement administration costs of \$15,000 and a service award to Representative Plaintiff Savannah Thompson in the form of a \$3,629.90 credit against her account balance. The Settlement cap on attorney fees was a condition insisted upon by JMH to facilitate resolution. Class Counsel agreed to this cap despite their actual lodestar of \$850,550 plus \$5,976.65 in expenses, representing more than a 30% discount.

Class Counsel asserts that they navigated complex legal and factual issues in a challenging environment where similar hospital pricing challenges have routinely failed at the pleading stage or been denied class certification. According to Class Counsel, this is the first known case of its type to achieve class certification in California. Class Counsel maintains that the \$600,000 fee cap accounts for the contingent risk undertaken and the quality of representation, and is significantly below what Class Counsel would otherwise be entitled to recover under the *Lodestar* method applicable to CLRA and Rosenthal Act fee-shifting provisions.

The Settlement was negotiated without a "clear sailing" agreement. JMH retained the right to oppose the fee application, which they have done here.

Analysis

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "the court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that

Neary does not always apply, because “where the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Other Costs

The requested representative payment of \$3,629.90 as a credit to plaintiff’s account was deferred until this final approval motion. Criteria for evaluation of such requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-07. The representative payment is approved.

Litigation costs of \$5,976.65 are reasonable and are approved. The settlement administrator’s costs of \$15,000 are reasonable and are approved.

Attorney’s Fees

Class Counsel seek \$600,000 in attorney’s fees, which they claim accounts for the contingent risk undertaken and the quality of representation, and is significantly below what Class Counsel would otherwise be entitled to recover under the *Lodestar* method applicable to CLRA and Rosenthal Act fee-shifting provisions.

JMH does not oppose final approval of the settlement but objects to Class Counsel's request for \$600,000 in attorney fees and expenses. JMH contends that Class Counsel's claimed lodestar of \$850,550 (plus \$5,976.65 in expenses) is excessive and should be reduced by at least 30%, and that a negative multiplier should then be applied to reflect the minimal success achieved, yielding a total award of only \$175,000–\$225,000.

JMH further argues that Class Counsel's claimed lodestar is inflated due to partner-heavy staffing and some duplicative work. Class Counsel billed 993 total hours, of which 914 hours (92%) were billed by two partners at partner rates, with no junior or mid-level attorneys and only 79 hours of paralegal time. By comparison, JMH's counsel (Sheppard Mullin) billed only 670 total hours, with just 241 partner hours, to achieve the same result. JMH contends that much of the work performed by partners—such as research, document review, and drafting—should have been delegated to junior attorneys, and that having only two partners necessarily resulted in duplicative efforts.

JMH also argues that Class Counsel achieved minimal success relative to the fees sought. The central relief sought—a reduction in the chargemaster rate from \$6,095 to \$567—was accomplished by JMH in January 2023, before JMH filed any responsive pleading, when Class Counsel's lodestar was approximately \$100,000. Thereafter, Class Counsel incurred an additional \$750,000 in fees to obtain relief for only 287 class members (2.16% of the 13,270 total patients billed for the service), with only 46 receiving cash payments totaling \$59,483.22. The remaining 241 class members received "credits" against outstanding balances that JMH contends were unlikely to ever be collected.

JMH highlights that it warned Class Counsel of these limitations in January 2024, before significant fees were incurred. In a letter, Sheppard Mullin advised that the only certifiable class would be limited to Kaiser-insured and self-pay patients, with cash exposure of only approximately \$50,000. Class Counsel rejected mediation at that time (when their lodestar was \$350,502) and proceeded to incur an additional \$504,700 in fees to achieve a settlement nearly identical to what had been predicted.

JMH requests that the court reduce the claimed lodestar by approximately 30% to account for

excessive and duplicative partner hours, and then apply a negative multiplier to reflect the limited success obtained, resulting in a fee award of \$175,000–\$225,000 (25–33% of the total class benefit), inclusive of unchallenged expenses.

The court has considered Defendant JMH opposition to Class Counsel's attorney fee application, as well as Class Counsel's reply. In their reply, Class Counsel contend that the opposition is inconsistent with the maxim that a party cannot litigate tenaciously and subsequently complain about the time necessarily expended by the prevailing party in response. Class Counsel emphasize that they voluntarily agreed to accept a fee award capped at \$600,000, representing a reduction of more than 30% from their calculated lodestar of \$850,550. This concession, they argue, obviates the need for further reduction and renders reasonable an award that might otherwise warrant enhancement based on contingency risk, novelty of the issues, and results obtained.

With respect to the procedural history, Class Counsel dispute Defendant's characterization of its willingness to settle. The record reflects that following Plaintiff's service of a 30-day cure notice pursuant to the Consumer Legal Remedies Act in September 2022, Defendant rejected the proposed remedy and vigorously defended the action. While Defendant reduced its chargemaster price for the Service effective January 2023, Class Counsel maintain that this reduction was not communicated as a settlement gesture and that Defendant did not propose a class-wide resolution until after Plaintiff prevailed on the motion for class certification. The court notes that the parties ultimately reached settlement following the certification order.

Regarding Defendant's challenges to the lodestar, Class Counsel argue that Defendant has failed to satisfy its burden of identifying specific time entries that are excessive, duplicative, or unreasonable. Defendant's reliance upon comparative billing data from its own counsel is of limited utility; plaintiff-side class action litigation typically requires greater investment of attorney time, as counsel bear the burden of production, must proactively develop the factual record, and are required to master complex subject matter in which defense counsel are typically already versed. Class Counsel also correctly observe that consumer protection statutes with mandatory fee-shifting provisions do not require proportionality between fees recovered and monetary damages awarded; the legislative purpose of such provisions is to encourage enforcement of consumer rights, and fee awards are not limited to a percentage of the class recovery.

Based on the record, the court finds that the fees requested are reasonable, with a minor reduction to account for efficiencies that could have been achieved had the work been performed by non-partner attorneys. The Court finds that a ten percent (10%) reduction from the amount is warranted, resulting in an award of attorney's fees (\$600,000- \$60,000) of \$540,000.

Conclusion

1. The court finds that the settlement is fair, reasonable, and adequate, with a minor reduction of 10% of attorneys, resulting in an award of \$540,000 in fees.
2. The motion is **granted**.
3. Plaintiff's counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing, and is ordered to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance, an accounting of the

disbursements, including amounts sent to Bay Area Legal Aid as *cy pres* recipient, as found by the court.

5. No appearance is required at the hearing on September 2, 2026.

6. 9:00 AM CASE NUMBER: C23-00664

CASE NAME: KAREN LARKIN VS. BARBARA SCHURHOFF

HEARING IN RE: MOTION (EX PARTE TO CONTINUE THE TRIAL AND RELATED DATES) FILED ON 8/19/26 BY BARBARA SCHURHOF

FILED BY:

TENTATIVE RULING:

Summary

Before the Court is Defendant Barbara Schurhoff (Deceased) Motion to Continue the Trial Date currently set for November 2, 2026, along with related discovery and expert deadlines for six (6) months. Defendant requests a continuance in order to conduct Independent Medical Examinations on vascular and orthopedic issues. As set forth below, this motion is **denied**.

Background

Plaintiff Karen Larkin ("Plaintiff") initiated this action and seeks \$3.3 million in damages against Defendant Barbara Schurhoff ("Defendant") for alleged injuries sustained in an April 1, 2021 incident. Plaintiff was allegedly struck by a golf cart driven by Defendant, who is now deceased. The trial in this matter is currently set for November 2, 2026. The settlement conference is set for August 28, 2026. This is Defendant's first request for a continuance.

Defendant claims that Plaintiff has placed both orthopedic conditions (crush injuries, contusions, altered gait, sciatica, neck pain, upper-extremity symptoms) and vascular conditions (bilateral venous insufficiency, sclerotherapy) at issue in this action. Orthopedics and vascular medicine are distinct medical specialties requiring separate expertise. Plaintiff stipulated to a vascular Independent Medical Examination ("IME"), which is scheduled for August 27, 2026.

However, Defendant claims that Plaintiff refused to stipulate to an orthopedic IME, necessitating Defendant's Motion to Compel Plaintiff to Submit to a Second IME ("MTC"). That motion is currently scheduled for January 20, 2027, well after the November 2, 2026 trial date. The Civil Law Division of this Court manages over 25,000 active cases. Department 16, alone, manages 2,700 active cases, including class actions, complex litigation, construction defect and PAGA matters. There are simply not enough hearing dates available to accommodate a hearing on the regular calendar until January, 2027.

Defendant claims to have exercised due diligence in attempting to obtain the orthopedic IME:

- On May 20, 2026, Defendant requested Plaintiff's stipulation to the orthopedic IME;
- On July 1, 2026, Defendant served a formal Demand for Second IME;
- On July 8, 2026, the parties met and conferred regarding the examination;
- On August 4, 2026, Defendant filed the MTC;
- On August 10, 2026, Defendant requested Plaintiff's stipulation to continue the trial;
- On August 12, 2026, Plaintiff refused to stipulate to the continuance.

Defendant claims that she accommodated Plaintiff's restrictions regarding IME scheduling, including retaining new experts in Northern California when Plaintiff declined to travel to Southern California and working around Plaintiff's refusal to attend examinations before noon. Defendant Barbara Schurhoff is deceased and unavailable to testify or participate in the defense, making objective medical evidence particularly critical to a fair adjudication.

Even if the discovery motion on calendar for January 20, 2027 were advanced and granted, Defendant claims to require additional time to: (a) conduct the orthopedic IME; (b) obtain expert reports; (c) allow expert review and cross-analysis between vascular and orthopedic findings; (d) conduct any necessary follow-up discovery; and (e) prepare for trial.

Plaintiff Karen Larkin opposes the continuance, arguing that defendant's claimed need for additional discovery is entirely self-created through a lack of diligence spanning over a year. Current defense counsel substituted into the case on July 23, 2025. By August 6, 2025, 363 days before filing their motion to compel a second examination, plaintiff's counsel explicitly informed defendant both that plaintiff would not agree to a second physical examination and that prior counsel had already been advised of this position. Despite threatening in May 2026 to file a motion to compel by May 27, 2026, defendant waited until August 4, 2026 to file the motion. Plaintiff contends that had defendant acted diligently in August 2025 when first advised of plaintiff's position, any dispute over the second examination could have been resolved well before the trial date, rendering the continuance unnecessary.

Plaintiff also challenges the substantive basis for the second examination itself. Under CCP § 2032.220, defendant is entitled to one physical examination without leave of court, which they have already demanded and scheduled with vascular surgeon Dr. Kasirajan for August 27, 2026. Plaintiff argues that any licensed physician, including defendant's retained vascular surgeon, is qualified to conduct a complete physical examination of the entire body, even if that physician may only be qualified to render expert opinions within their specialty. Defendant has already retained both a vascular surgeon and an orthopedic surgeon (Dr. Grossman) as consulting experts who provided record review opinions; the fact that defendant wishes to present testimony from multiple specialists does not entitle them to multiple physical examinations. CCP § 2032.320 requires good cause for additional examinations, which defendant cannot demonstrate when their own selected examiner is fully capable of conducting a complete physical exam.

Plaintiff further alleges that defendant is actively manipulating the discovery process. After defendant's originally scheduled July 9, 2026 examination was cancelled by Dr. Kasirajan for personal reasons and rescheduled to August 27, 2026, defendant served an "Amended" demand on August 21, 2026—only six days before the examination—purporting to limit the scope to vascular issues only. This violates CCP § 2032.320(d), which requires at least 30 days' notice for physical examination demands. Plaintiff characterizes this as a transparent attempt to artificially manufacture the need for a second examination by inappropriately restricting the scope of the first examination, which was originally noticed to encompass all body parts related to plaintiff's complaints.

Finally, plaintiff highlights significant prejudice from the requested continuance. The case was filed in March 2023 and has been at issue since July 2023. The five-year statutory limitation under CCP § 583.310 will expire in March 2028, and granting the continuance would push the trial date close to that deadline. Plaintiff, now 78 years old, has been living with her injuries for over five years without

compensation, depleting her retirement savings to address hardships caused by defendant's negligence. The opposition argues that defendant's delays were not due to any inability to act despite diligent efforts, but rather constitute a repetitive lack of diligence that should not be excused by granting a continuance.

Analysis

The Court starts with the following premise: "To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain. (CRC Rule 3.1332(a)) A trial continuance should be granted upon a showing of good cause. (CRC Rule 3.1332(c)). Good cause is demonstrated by a factual showing stating the reasonable grounds for the order sought. (*Board of Medical Quality Insurance v. Gherardine* (1979) 21 Cal.App.3d 669, 681.) The decision whether to grant a motion for continuance is within the trial court's discretion. (*Color-Vue, Inc. v. Abrams* (1996) 44 Cal.App.4th 1599, 1603; *Jurado v. Toys "R" Us* (1993) 12 Cal.App.4th 1615, 1617.) However, "the refusal of a continuance which has the practical effect of denying the applicant a fair hearing is reversible error." (*Oliveros v. County of Los Angeles* (2004) 120 Cal.App.4th 1389, 1395.) "Such decisions must be made in an atmosphere of substantial justice." (Id.)

California Rules of Court, Rule 3.1332(c) permits a continuance upon an affirmative showing of good cause, including a party's "excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts" (Rule 3.1332(c)(6)) and "a significant, unanticipated change in the status of the case as a result of which the case is not ready for trial" (Rule 3.1332(c)(7)). Here, Defendant has demonstrated good cause for a continuance under Rule 3.1332(c)(6) and (c)(7). Defendant has satisfied the requirements of Code of Civil Procedure section 595.4 by establishing both the materiality of the evidence and due diligence in attempting to obtain it.

Furthermore, the factors set forth in Rule 3.1332(d) weigh in favor of granting the continuance, particularly: the absence of any prior continuance; the lack of alternative means to obtain the evidence; the irreparable prejudice Defendant would suffer if forced to trial without essential medical discovery; and the interests of justice. The Court finds that denial of the continuance would have the practical effect of denying Defendant a fair hearing in violation of due process principles. See *Oliveros v. County of Los Angeles* (2004) 120 Cal.App.4th 1389, 1395.)

Defendant Has Not Demonstrated Good Cause Under Rule 3.1332(c)(6)

No "Excused Inability." Here, Defendant has not demonstrated an "excused inability" to obtain the discovery it seeks. Defendant's inability to proceed without a second physical examination appears to be self-created. Current defense counsel was informed on August 6, 2025, 363 days before filing the motion to compel a second examination, that Plaintiff would not stipulate to a second examination. Defendant thereafter indicated that she would file a motion to compel by May 27, 2026, but failed to do so until August 4, 2026. Had Defendant acted diligently in August 2025, or even May 2026, any dispute regarding the second examination could have been resolved well before the November 2, 2026 trial date.

No "Diligent Efforts." Defendant has not satisfied the requirements of Code of Civil Procedure section 595.4. Defendant's nearly year-long delay in seeking relief, followed by its failure to meet its own deadline, demonstrates a lack of due diligence, not diligent efforts to obtain essential evidence. A party cannot create its own emergency through inaction and then claim "diligent efforts" to justify a continuance.

The Evidence Is Not "Essential." Under Code of Civil Procedure section 2032.220, Defendant is entitled to one physical examination without leave of court. Defendant has already demanded and scheduled such an examination with vascular surgeon Dr. Karthikeshwar Kasirajan for August 27, 2026. Any licensed physician, including Defendant's retained vascular surgeon, is qualified to conduct a complete physical examination of the entire body. That the examining physician may only be qualified to render expert opinions within his specialty does not render him unqualified to conduct a complete physical examination. Defendant's claim that a second examination is "essential" is undermined by the fact that it has not yet conducted its first authorized examination, and that any licensed physician can examine all body parts, even if only qualified to opine on certain conditions.

Defendant Has Not Demonstrated Good Cause Under Rule 3.1332(c)(7)

There has been no "significant, unanticipated change in the status of the case." The only "change" is Defendant's claim that requires a second physical examination. This Court finds that Defendant's failure to act diligently over the course of more than a year does not constitute an "unanticipated change" warranting a continuance.

The factors set forth in Rule 3.1332(d) weigh heavily in favor of denying the continuance

Alternative Means: Defendant has adequate alternative means to obtain the discovery it needs. Defendant may conduct its one authorized physical examination scheduled for August 27, 2026. Defendant has also retained multiple medical consultants who have provided record review opinions. The Court finds that Defendant's retained vascular surgeon is qualified to conduct a complete physical examination of Plaintiff, and that Defendant's claimed need for a second examination by an orthopedic surgeon is not justified where any licensed physician may conduct the one authorized examination.

Prejudice to Plaintiff.

The Court finds that Plaintiff would suffer prejudice if the continuance were granted. This action was filed in March 2023 and has been at issue since July 2023. Plaintiff is 78 years old and has been living with her injuries for over five years without compensation. Although a preference motion has not been filed, the Court finds that the prejudice to Plaintiff from further delay substantially outweighs any claimed prejudice to Defendant.

Interests of Justice

The Court is concerned about Defendant's conduct in this matter. On August 21, 2026, just six days before the scheduled examination, Defendant served an "Amended" demand purporting to limit the scope of the examination to vascular issues only. This violates Code of Civil Procedure section 2032.320(d), which requires at least 30 days' notice for physical examination demands. The Court finds that this appears to be an attempt to manipulate the discovery process to manufacture a need for a second examination. The interests of justice do not favor rewarding such conduct with a continuance.

Due Process Considerations

While "the refusal of a continuance which has the practical effect of denying the applicant a fair hearing is reversible error" (*Oliveros v. County of Los Angeles* (2004) 120 Cal.App.4th 1389, 1395), this Court finds that denying the continuance will not deny Defendant a fair hearing. Defendant has already scheduled its authorized physical examination and has retained multiple experts who can review records and render opinions. Defendant's claimed need for a continuance stems from its own

lack of diligence and its attempt to obtain multiple physical examinations to which it is not entitled. Substantial justice favors denying the motion.

The Court finds that Defendant has not demonstrated good cause for a continuance under California Rules of Court, Rule 3.1332(c)(6) or (c)(7). Defendant's claimed inability to obtain essential discovery was caused by its own lack of diligence, not circumstances beyond its control. The factors set forth in Rule 3.1332(d) weigh against granting the continuance, particularly the significant prejudice to Plaintiff, the elderly status of Plaintiff, the proximity to the five-year statutory deadline, and Defendant's apparent attempt to manipulate the discovery process. The Court further finds that denial of the continuance will not have the practical effect of denying Defendant a fair hearing.

Ruling

1. Defendant's Motion to Continue Trial is **denied**. The trial shall remain set for November 2, 2026, at 9:00 a.m. in Department 16.
2. Defendant's physical examination of Plaintiff should have already proceeded as scheduled on August 27, 2026, with Dr. Karthikeshwar Kasirajan. The scope of that examination shall be "those parts of the body which may be related to the Examinee's complaints relative to the within action," as originally noticed. Defendant's "Amended" demand served August 21, 2026, is deemed untimely and ineffective.
3. Defendant's Motion to Compel a Second Physical Examination, currently set for hearing on January 20, 2027, is **vacated** as moot in light of this ruling.
4. Each party shall bear their own costs and fees incurred in connection with this motion.
5. Plaintiff shall prepare a proposed order conforming to this ruling, attaching a copy of this ruling, no later than five (5) days from the date of the hearing.

7. 9:00 AM CASE NUMBER: C23-00838

CASE NAME: YOLANDA PAYNE VS. EKSIO BIONICS, INC.

***HEARING ON MOTION IN RE: TAX COSTS**

FILED BY: PAYNE, YOLANDA

TENTATIVE RULING:

Summary

The Court, having considered Plaintiff Yolanda Payne's Motion to Tax Costs, Defendant Eksio Bionics, Inc.'s Opposition thereto, and all papers and arguments presented, hereby **denies** the motion for the reasons set forth below.

Background

Plaintiff's Complaint alleged seven causes of action, of which four were purely non-FEHA claims: (1) retaliation under Labor Code § 1102.5; (2) retaliation under Labor Code § 6310; (3) retaliation under Labor Code §§ 233 and 246.5; and (4) wrongful termination in violation of public policy. These non-FEHA claims arose from the same nucleus of operative facts as the FEHA claims—namely, allegations that Defendant retaliated against Plaintiff for reporting safety concerns.

On October 16, 2025, this Court entered its order granting Ekso's Motion for Summary Judgment in its entirety, disposing of each of Plaintiff's seven causes of action. On November 7, 2025, this Court then entered Judgment in favor of Ekso, expressly finding that Ekso was "the prevailing party" and that it was thus "entitled to recover its costs pursuant to the code." Accordingly, having obtained a complete defense judgment on all claims asserted by Plaintiff, Ekso is presumptively entitled to recover its allowable costs as a matter of right unless Plaintiff affirmatively demonstrates that particular cost items are not recoverable. (CCP §§ 1032 (b), 1033.5.)

As set forth below, the Court finds that the discovery, depositions, witness preparation, and case management activities undertaken by Defendant were necessary to defend all claims simultaneously and would have been incurred even if Plaintiff had not pled the three FEHA causes of action. Under *Moreno* and *Roman*, *infra*, Defendant is entitled to recover costs attributable to the non-FEHA claims and costs that are inseparable from the defense of those claims. The Court rejects Plaintiff's argument that *Williams* creates a categorical bar to all costs in mixed-action cases.

Analysis

Under Code of Civil Procedure § 1032, a prevailing party is entitled to recover costs as a matter of right. In *Williams v. Chino Valley Independent Fire District* (2015) 61 Cal.4th 97, 99-100, the California Supreme Court held that a prevailing defendant in an action under the Fair Employment and Housing Act (FEHA) may not be awarded fees or costs absent an objective finding that the plaintiff's action was frivolous, unreasonable, or groundless. However, *Williams* addressed a case involving only FEHA claims and expressly did not consider mixed-action cases.

Subsequent Court of Appeal decisions have clarified that in mixed FEHA/non-FEHA cases, the *Williams* limitation applies only to costs incurred solely in the defense of FEHA claims. Under *Moreno v. Bassi* (2021) 65 Cal.App.5th 244, 249 and *Roman v. BRE Properties* (2015) 237 Cal.App.4th 1040, 1057-1058 a prevailing defendant may recover: (1) costs attributable to non-FEHA causes of action; and (2) costs tied to, intertwined with, or inseparable from costs that would have been incurred even if no FEHA claim had been asserted.

Costs are recoverable if they are "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (CCP § 1033.5(c)(2)-(3).) A verified Memorandum of Costs constitutes *prima facie* evidence that the listed costs were necessarily incurred and reasonable in amount. The burden rests on the party seeking to tax costs to identify specific items and demonstrate that each cost is improper, unnecessary, or unreasonable. (CRC Rule 3.1700(b)(2); *612 S. LLC v. Laconic Ltd. P'ship* (2010) 184 Cal.App.4th 1270, 1285.)

1. Filing Fees (\$289.10)

The Court finds that the challenged filing fees are recoverable under CCP § 1033.5(a)(1), which expressly allows "[f]iling, motion, and jury fees." To the extent these charges reflect mandatory electronic filing service fees necessary to submit required case management statements and other court papers, they are properly treated as filing costs or allowable in the Court's discretion under § 1033.5(c)(4). These filings were compulsory compliance submissions required irrespective of the nature of the claims and would have been incurred to defend the non-FEHA claims. Plaintiff has not demonstrated that these charges were unreasonable in amount. The motion to tax filing fees is DENIED.

2. Mediation Fees (\$4,000.00)

The Court finds that the mediation fees are recoverable in the Court's discretion under CCP § 1033.5(c). Contrary to Plaintiff's assertion that the mediation was "voluntary," the Court ordered the parties to participate in mediation on January 23, 2024, with a deadline of June 24, 2024. Under *Gibson v. Bobroff* (1996) 49 Cal.App.4th 1202, 1207-1208, expenses incurred in connection with a court-ordered mediation may be awarded as costs. Moreover, the mediation addressed all claims arising from the same factual dispute and would have been incurred to resolve the non-FEHA claims even if no FEHA claims had been pled. Plaintiff has not demonstrated that the \$4,000 fee was unreasonable in amount. The motion to tax mediation fees is **denied**.

3. Attorney Messenger/Service of Process Fees (\$1,275.60)

The Court finds that these charges are recoverable as "fees for service of process" under CCP § 1033.5(a)(4). Defendant has demonstrated that these charges were incurred to serve deposition subpoenas on third-party witnesses Angelina Torres, Christine Hynds, and Debra Wondercheck, who witnesses identified by Plaintiff in her discovery responses. These were not routine attorney convenience charges for deliveries between counsel, which would be barred by *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761. Rather, they were necessary to secure testimony from third-party witnesses and would have been required to defend the non-FEHA claims. The motion to tax service of process fees is **denied**.

4. Record Duplication Costs (\$523.18)

The Court finds that these costs are recoverable in the Court's discretion under CCP § 1033.5(c). Defendant has demonstrated that these charges were for obtaining copies of subpoenaed business and medical records maintained under the parties' protective order, which were used in connection with discovery and motion practice. These were not attorney convenience copies but records necessary to evaluate Plaintiff's damages claims and employment history. These costs would have been incurred to defend the non-FEHA claims, and Plaintiff has not demonstrated they were unreasonable in amount. The motion to tax record duplication costs is **denied**.

5. Investigation Fees (\$3,250.00)

The Court finds that these charges are recoverable as service-of-process related costs under CCP § 1033.5(a)(4) or, alternatively, as discretionary costs under § 1033.5(c). Defendant has demonstrated that these were not general background investigation expenses barred by § 1033.5(b)(2), but rather skip-tracing and location services necessary to serve deposition subpoenas on third-party witnesses Christine Hynds and Debra Wondercheck, who were witnesses Plaintiff identified as having knowledge of relevant facts. Fees for locating and serving witnesses are properly considered part of "service of process" and are recoverable when reasonably necessary. These costs were incurred to obtain testimony relevant to both FEHA and non-FEHA claims and would have been necessary even if only non-FEHA claims had been pled. Plaintiff has not demonstrated these charges were unreasonable in amount. The motion to tax investigation fees is **denied**.

Burden of Proof

The Court finds that Defendant, as the prevailing party on all claims, is entitled to recover costs under CCP § 1032. The *Williams* limitation applies only to costs incurred solely in defense of FEHA claims, and Defendant is entitled to recover costs attributable to the non-FEHA claims and costs that would have been incurred even if no FEHA claims had been pled.

The Court finds that Plaintiff has failed to meet her burden under CRC Rule 3.1700(b)(2) and 612 S. LLC to identify specific items and demonstrate that each challenged cost is improper, unnecessary, or unreasonable. Plaintiff's objections are conclusory and unsupported by competent evidence. Defendant's verified Memorandum of Costs constitutes *prima facie* evidence of the necessity and reasonableness of the claimed costs, which Plaintiff has not overcome.

Ruling

1. Plaintiff's Motion to Tax Costs is **denied** in its entirety.
2. Defendant Ekso Bionics, Inc. is awarded costs in the total amount of \$25,968.32 as claimed in its Memorandum of Costs filed November 24, 2025.
3. Each party shall bear their own costs and fees incurred in connection with this motion.

8. 9:00 AM CASE NUMBER: C23-00908
CASE NAME: ABDO NASSER VS. DOES 1 TO 50
HEARING ON DEMURRER TO: CROSS-COMPLAINT OF T-MOBILE WEST LLC
FILED BY: MW CELL REIT 1 LLC
TENTATIVE RULING:

The hearing on MW Cell's Demurrer is **continued to November 25, 2026**, to be heard in concurrently with Cross-Defendants Abdo Nasser and Raja Nasser's Demurrer and Motion to Strike directed toward T-Mobile's Cross-Complaint.

9. 9:00 AM CASE NUMBER: C23-02436
CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED CROSS-COMPLAINT FILED BY: DROUBI, NAHLA (CONTINUED FROM 3/11/26)**
FILED BY:
TENTATIVE RULING:

Cross-Complainant Nahla Droubi's motion for leave to file a second amended cross-complaint is **granted**. Droubi shall file and serve the second amended cross-complaint within 10 days of the notice of entry of this order.

The Court previously heard Droubi's motion for leave to file a second amended cross-complaint. The Wankens opposed Droubi's motion for leave to amend, arguing that the motion does not comply with California Rules of Court, rule 3.1324(a)(2)-(3) and (b). The Court agreed that this motion was not compliant with rule 3.1324.

This matter was continued to allow Droubi to file and serve a redlined version of the proposed second amended complaint showing all amendments and a declaration compliant with rule 3.1324(b). The parties were given the chance to file new opposition and reply briefs.

Droubi has now filed a declaration and a copy of the proposed second amended cross-complaint. The Court has reviewed these filings. The Wankens did not file a new opposition opposing

this motion on substantive grounds.

On the merits, there is “a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]...” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is “ ‘inexcusable delay and probable prejudice to the opposing party’ ... [Citation.]” (*Ibid*; see also, *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 (even assuming there is unreasonable delay, “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.”).)

Here, Droubi seeks to add a slander of title claim and make other small changes to the cross-complaint. The original cross-complaint was filed in April 2024 and this motion was filed in December 2025. Droubi has provided no explanation for the delay in bringing the slander of title claim, however there is also no showing of prejudice. The Court **grants** this motion.

10. 9:00 AM CASE NUMBER: C23-02436

CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF FIRST AMENDED COMPLAINT**

FILED BY: DROUBI, NAHLA

TENTATIVE RULING:

Defendant Nahla Droubi’s motion to strike punitive damages from the first amended complaint is **granted with leave to amend**. Plaintiffs have 10 days from the notice of entry of this order to file an amended complaint.

Defendant seeks to strike the punitive damages allegations. (FAC ¶49, the “punitive damages” language in prayer for relief 1.)

In the FAC, Plaintiffs sued for breach of contract, unjust enrichment, trespass and contribution under Civil Code section 845. Plaintiffs own 30 Echo Hill Lane and Defendant owns 22 Echo Hill Lane. (FAC ¶¶8-9.) Echo Hill Lane is a private roadway that connects both parties’ properties to Warfield Drive. (FAC ¶¶8-9.) Defendant’s property uses the roadway pursuant to an express easement. (FAC ¶9.) The parties also entered into a maintenance agreement for the roadway. (FAC ¶¶10, 11.)

In 2021, Plaintiffs told Defendant that the roadway needed to be replaced and asked Defendant to pay for half of the work. (FAC ¶¶12, 13.) In 2023, Plaintiffs got the opinion of a structural and civil engineer stating that the roadway needed to be repaved. (FAC ¶¶14, 15.) Later in August 2023, Plaintiffs had the roadway repaved for \$94,500. (FAC ¶16.) Defendant has not paid for her half of the roadway costs. (FAC ¶17.)

The punitive damages allegations relate to the trespass claim. In the trespass claim, Plaintiffs also own 18 Echo Hill Lane, which is next to a portion of the easement area (Echo Hill Lane). Plaintiffs allege that Defendant and her guests use a footpath next to the express easement and that this footpath goes onto Plaintiffs’ property outside of the easement area. (FAC ¶43.) Plaintiffs also allege that they put up walls to block the footpath, but after that Defendant and her guests started using the driveway for 18 Echo Hill Lane. (FAC ¶44.) Plaintiff alleges that Defendant’s behavior “was knowing,

intentional and willful, and was undertaken with oppression, fraud, and/or malice, entitling Plaintiffs to an award of punitive damages”. (FAC ¶49.)

Defendant argues that the intent necessary to prove a trespass does not always rise to the level necessary for punitive damages and that here the allegations are insufficient. Plaintiffs argue that they have sufficiently alleged facts showing punitive damages.

Punitive damages may be awarded in some trespass claims. (*Haun v. Hyman* (1963) 223 Cal.App.2d 615, 620 (punitive damages allowed when a “trespass is committed from wanton or malicious motives, or a reckless disregard of the rights of others”).) Since 1987, however, a party must not only show “reckless disregard of the rights of others”, but “despicable conduct” in order to show malice. (See, *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725 [The requirement of showing despicable conduct was added in 1987, and was intended to serve as a substantial, independent limitation on the right to recover punitive damages].)

That being said, not all trespass claims include the intent necessary to award punitive damages. “The only intent required to commit a trespass is an intent to enter the land regardless of motivation; a trespass may be committed by an act that can be intentional, reckless or negligent.” (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 10, fn. 7.)

Thus, the question here is whether the facts alleged show fraud, oppression or malice. (Civil Code section 3294.) There is no showing of fraud. Malice requires “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code section 3294(c)(1).) Oppression requires “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” Despicable conduct has been described as conduct that is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. [Internal quotation marks omitted.]” (*Butte Fire Cases* (2018) 24 Cal.App.5th 1150, 1159.)

Here, it is alleged that Defendant, Plaintiffs’ immediate neighbor, used a portion of Plaintiffs’ property to access her own property. It is also alleged that Defendant continued to use Plaintiffs’ property after Plaintiffs installed a wall to block access to the path. The allegations here are sufficient to state a claim for trespass, but they do not show despicable conduct. Therefore, the motion to strike punitive damages. As this is the first time these issues have been considered by the Court, Plaintiffs are given leave to amend.

11. 9:00 AM CASE NUMBER: C24-01760
CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION
HEARING ON SUMMARY MOTION FILED BY DEFENDANT CITY OF OAKLEY
FILED BY:
TENTATIVE RULING:

The Defendant City of Oakley was dismissed on August 5, 2026. If this motion is withdrawn or moot, counsel shall provide notice to the Court.

12. 9:00 AM CASE NUMBER: C24-01760
CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION
HEARING ON SUMMARY MOTION FILED BY DEFENDANT SHEA HOMES LIMITED PARTNERSHIP
FILED BY: SHEA HOMES LIMITED PARTNERSHIP
TENTATIVE RULING:

The Court continues the hearing on this motion to September 9, 2026 at 9:00 a.m.

13. 9:00 AM CASE NUMBER: C24-01760
CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION
HEARING ON SUMMARY MOTION FILED BY CROSS-DEFENDANT OAKLEY UNION ELEMENTARY
SCHOOL DISTRICT
FILED BY:
TENTATIVE RULING:

Judgment in favor of Cross-Defendant Oakley Union was entered on 8/5. If this motion is withdrawn or moot, counsel shall provide notice to the Court.

14. 9:00 AM CASE NUMBER: C24-02009
CASE NAME: DANIEL RUBIO VS. RH OAK, INC.
***HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT**
FILED BY: RH OAK, INC.
TENTATIVE RULING:

Before the Court is Defendant RH Oak, Inc.'s Motion to Enforce Settlement Agreement and for Award of Attorney Fees, Costs and Sanctions ("Motion").

General Procedural Background

Plaintiff filed his original Class Action Complaint on July 30, 2024, alleging nine employment related causes of action. The First Amended Class Action Complaint was filed on December 9, 2024, which added a PAGA claim.

On March 11, 2025, Plaintiff Daniel Rubio executed a Mutual Release and Settlement Agreement ("Settlement Agreement") with Defendant RH Oak, Inc. The Settlement Agreement calls for a payment to Plaintiff (discussed below) in return for Plaintiff filing a Request for Dismissal of the Complaint within 2 business days of the full execution of the Settlement Agreement – *i.e.* by March 15, 2026.

Defendant notes that Plaintiff has not dismissed the Complaint as required by the Agreement. Instead, a motion for leave to amend was filed on his behalf on January 14, 2026. Given the failure of Plaintiff to abide by the terms of the Agreement, Defendant now moves to enforce the Agreement.

Plaintiff's opposition to this Motion was due by Thursday, August 20, 2026. As of the date of the drafting of this Tentative Ruling, no timely Opposition has been filed.

Overview of Section 664.6

Pursuant to the California Code of Civil Procedure ("CCP") section 664.6:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc., §664.6(a).)

California courts have interpreted section 664.6 as creating "a summary, expedited procedure to enforce settlement agreements when certain requirements that decrease the likelihood of misunderstandings are met." (*Elyaoudayan v. Hoffman* (2003) 104 Cal.App.4th 1421, 1429).

"A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement." (*Ibid.* numerous citations omitted.) "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement." (*Ibid.*)

"The statutory language makes clear, however, that a party moving for the entry of judgment pursuant to a settlement under Code of Civil Procedure section 664.6 need not establish a breach of contract to support relief under the statute." (*Hines, supra*, 167 Cal.App.4th at 1185.) Instead, the Court is authorized to "enter a judgment pursuant to the settlement regardless of whether [a party's] nonperformance of [their] settlement obligations [were] excused." (*Ibid.*)

Analysis

Under Section 664.6, if the Court finds that the parties stipulate in writing to the settlement of the case – which the parties have done here – it may "enter judgment **pursuant to the terms of the settlement.**" (Code Civ. Proc. § 664.6.) There appear to be at least two problems with the Settlement Agreement at issue which prevent the Court from granting the motion.

Defendant's Obligation

Defendants submit the signed and dated Settlement Agreement as Exhibit A to the declaration of Marilyn Smith, counsel for defendants. Counsel indicates that it is a "true and correct copy" of the Agreement. The version submitted, however, appears to be redacted. Paragraph 3, entitled Settlement Payments states:

3. **Settlement Payments.** In exchange for the promises and releases made in this Agreement, the Parties agree upon full execution of this Agreement Company shall give a check to Employee in the amount of _____ Dollars USD (\$ _____) in cash (the "Settlement Amount"). *Plus not to collect \$ _____ w/c overpayment*

The amount to be paid is blacked out, as is the amount that Defendant claims it will not seek to

collect related to workers' compensation overpayment. The declaration in support does not indicate that the above blacked out areas are 'redacted' nor does the Settlement Agreement itself appear to so indicate.

"In general, before judgment can be entered upon a settlement under section 664.6, 'there must be a 'writing signed by the parties' that contains the material terms' of the agreement." (*Fauss v. GAF Corp.* (2002) 103 Cal.App.4th 1110, 1123.) The material terms include the amount the Defendant is obligated to pay. (*Ibid.* finding that the judgment entered failed to satisfy section 664.6 because it failed to include the "amount [settling party] was obligated to pay.")

Under Section 664.6, if the Court finds that the parties stipulate in writing to the settlement of the case – which the parties have done here – it may "enter judgment **pursuant to the terms of the settlement.**" (Code Civ. Proc. § 664.6.) The Court cannot enter judgment 'pursuant to the terms of the settlement' when material terms of the Settlement Agreement are blacked out.

While this oversight can easily be remedied by Defendant submitting an unredacted version of the Agreement, there is still another problem with the Settlement Agreement which appears to prevent the Court from entering judgment thereon.

Plaintiff's Obligation

The Settlement Agreement defines Plaintiff's obligation as follows:

"Within 2 business days of the full execution of this Agreement, [Plaintiff] shall cause to be filed a Request for Dismissal of the Complaint."

On its face, this appears to be a straightforward requirement. However, in this case it appears that the parties may not have agreed to a result they both wanted.

"Before judgment can be entered, two key prerequisites must be satisfied [...] First, there must be contract formation. The litigants must first agree to the material terms of a settlement contract before a judgment can be entered 'pursuant to the terms of the settlement.' If no meeting of the minds has occurred on the material terms of a contract, basic contract law provides that no contract formation has occurred." (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 797.)

An essential element of contract formation is 'mutual consent.' (*Id.* at 811.) "The existence of mutual consent is determined by objective rather than subjective criteria, the test being what the outward manifestations of consent would lead a reasonable person to believe." (*Ibid.*) "Outward manifestations thus govern the finding of mutual consent...." (*Ibid.*) "The parties' outward manifestations must show that the parties all agreed 'upon the same thing in the same sense.'" (*Ibid.* citation omitted.)

Here, it appears that the intent of the parties was for Defendant to pay Mr. Rubio a certain sum in exchange for him having this lawsuit dismissed – i.e. to file a request for "Dismissal of the Complaint." While the Settlement Agreement merely states that Mr. Rubio is to file such a request, it is clear the intent was to have the whole matter dismissed such that Defendant no longer had to defend this lawsuit. It would not make objective sense for Defendant to agree to pay Mr. Rubio to merely file such a request if it did not have any impact on the proceedings. This is consistent with Defendant's request that the Court "enter an order dismissing the Action pursuant to the [Agreement.] (Motion at

9:7-8.)

There are a few problems with this request. First, it does not appear that the Court has the authority to dismiss the action pursuant to this Motion.

Section 664.6(a) provides:

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.”

The above shows two separate powers that the parties can give to the court when they sign an agreement settling the case outside the presence of the court. First, the court can “enter judgment pursuant to the terms of the settlement.” In other words, the court can enforce the settlement agreement by entering judgment thereon.

Second, “[i]f the parties to the settlement agreement or their counsel stipulate in writing” the court may dismiss the case as to the settling parties and retain jurisdiction to enforce the settlement. The Settlement Agreement at issue here does not include language granting the Court authority to dismiss the action and retain jurisdiction. The applicable paragraph states:

The Parties agree that each Party has the right to enforce this Agreement, or any provision thereof, by filing any appropriate motion or proceeding, including, without limitation, a motion pursuant to California Code of Civil Procedure Section 664.6, in the Actions.

Section 664.6 was “amended in 1993 to expressly permit courts to retain jurisdiction after dismissal to enforce the terms of the settlement, *if requested to do so.*” (*In re The Clergy Cases I* (2010) 188 Cal.App4th 1224, 1236.) There is no such request here.

Dismissal of Class Action and PAGA claims

More importantly, the Court cannot dismiss a class action complaint or a PAGA claim merely upon the settlement of the named plaintiff in the action. Initially, it is worth noting that there is no express language in the Settlement Agreement that Defendant is agreeing to dismiss the class claims or the representative PAGA claims. Even if there were, the mere filing of a Request for Dismissal of Complaint by Mr. Rubio could not accomplish that desired result.

Rule 3.769 of the California Rules of Court requires that a “settlement or compromise of an entire class action, or of a cause of action in a class action, or as to a party, requires the approval of the court after hearing.” (Cal. R. Ct. 3.769(a).) Likewise, court approval is required to dismiss an entire class action or cause of action in a class action. (Cal. R. Ct. 3.770(a).) A request for dismissal “must be accompanied by a declaration setting forth the facts on which the party relies.” (*Ibid.*)

The Settlement Agreement is ambiguous as to what Defendant is asking Plaintiff to do. The wording of the Settlement Agreement says that a Request for Dismissal of Complaint will be filed. That alone, however, would be insufficient to obtain dismissal of the class action complaint. At most, it would

dismiss Defendant's individual claims. That does not mean that the class claims are likewise dismissed.

California courts "recognize and preserve the rights of absent class members, even before the issue of certification has been determined." (*Shapell Industries, Inc. v. Superior Court* (2005) 132 Cal.App.4th 1101, 1109.) As such, if the named plaintiff in a class action complaint dismisses "himself as an individual party to the action mean[ing] that there was no named representative plaintiff of the putative class ... the putative class remain[s] extant, awaiting proper amendment of the complaint to add a new representative plaintiff." (*Id.* at 1108.)

In other words, Mr. Rubio does not appear to have the authority to – nor is he required to seek – dismissal of the class claims in the complaint.

Also, even if Mr. Rubio settles his individual claims that does not mean that he cannot proceed as a class representative on behalf of the remaining class members. As explained by the court in *Larner v. Los Angeles Doctors Hospital Associates, LP* (2008) 168 Cal.App.4th 1291:

"A class representative's receipt of relief on all her individual claims does not necessarily extinguish the interests of the members of the class she purported to represent. 'When a plaintiff sues on behalf of a class, he assumes a fiduciary obligation to the members of the class, surrendering any right to compromise the group action in return for an individual gain. Even if the named plaintiff receives all the benefits that he seeks in the complaint, such success does not divest him of the duty to continue the action for the benefit of others similarly situated.' (*La Sala v. American Sav. & Loan Assn.* (1971) 5 Cal.3d 864, 871 [].) "[A] defendant's grant of individual relief to the named plaintiffs in a class action does not, in itself, render those plaintiffs unfit per se to represent the class." (*Kagan v. Gibraltar Sav. & Loan Ass.* (1984) 35 Cal.3d 582, 594.)" (*Id.* at 1298.)

"Whether the named plaintiff will fairly and adequately protect that class frames an issue that rests in the discretion of the trial court." (*La Sala*, 5 Cal.3d at 871.)

Likewise, "PAGA settlements are subject to trial court review and approval, ensuring that any negotiated resolution is fair to those affected." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.) If the Settlement Agreement is meant to settle the entire action, which includes the PAGA claim, Court approval is required. In addition, even if Defendant settles his individual claims – including his 'individual' PAGA claims – that does not mean that Mr. Rubio cannot continue to prosecute the PAGA claims on behalf of the other individuals covered by the representative cause of action.

As the California Supreme Court made clear: "Settlement of individual claims does not strip an aggrieved employee of standing, as the state's authorized representative, to pursue PAGA remedies." (*Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 80.) As explained by the Court:

"The Legislature defined PAGA standing in terms of violations, not injury. [Plaintiff] became an aggrieved employee, and had PAGA standing, when one or more Labor Code violations were committed against him. (See §2699(c).) Settlement did not nullify these violations. The *remedy* for a Labor Code violation, through settlement or other means, is distinct from the *fact* of the violation itself. For example, employers can pay an additional hour of wages as a remedy for failing to provide meal and rest breaks. (§ 226.7, subd. (c).) But we have held that payment of this statutory remedy

“does not *excuse* a section 226.7 violation.” (*Id.* at 84.)

Thus, even though Plaintiff may be settling his individual Labor Code claims, that does not mean that he cannot be – and is not still – the state’s representative for the PAGA claim.

Summary

It appears that Defendant was attempting to have this entire action dismissed via its Settlement Agreement with Mr. Rubio. Per the terms of Settlement Agreement, however, that would not and could not occur based solely on Mr. Rubio filing a Request for Dismissal of Complaint.

“Under section 664.6, the [parties are] entitled to judgment ‘pursuant to the terms of the settlement’ [cite], **and nothing more.**” (*Machado*, supra, 39 Cal.App.5th at 792 emphasis added.) The Court cannot “add to or modify an express term of the settlement” under section 664.6. (*Leeman v. Adams Extract & Spice, LLC* (2015) 236 Cal.App.4th 1367, 1375.)

Based on the above, it does not appear that there was ever a ‘meeting of the minds’ and no actual contract was formed via execution of the Settlement Agreement. As such, it cannot be entered as a judgment.

If the Court is reading too much into the Settlement Agreement – and Defendant is actually seeking to have the Settlement Agreement entered as a Judgment as written (with the redactions discussed above regarding the amounts at issue removed), the Court will grant such a request. The Court does not believe that is what Defendant wants, however.

Monetary Sanctions

Defendant also requests sanctions Civil Code section 1717, Code of Civil Procedure sections 128.5 and 2023.030, as well as California Rules of Court 2.30 – based in part of Plaintiff’s failure to dismiss the Complaint in accordance with the Agreement. None of the authorities cited by Defendant authorizes a court to award sanctions in connection with a motion to enforce a settlement agreement pursuant to section 664.6

Initially, as noted above, the Court’s ruling on a motion to enforce under section 664.6 is limited to entering a judgment pursuant to the terms of the settlement agreement. There is no indication that sanctions are permissible under that section.

In addition, each of the above rules of statutes provide for their own procedures for seeking sanctions. To award attorney fees under Civil Code section 1717, the Court must first determine which party (if any) is the “prevailing party.” As discussed above, that issue is not before the Court at this time. Section 128.5 contains a mandatory 21-day safe harbor provision. (*Transcon Financial, Inc. v. Reid & Hellyer, APC* (2022) 81 Cal.App.5th 547, 550.) There is no indication this has been complied with. Section 2023.030 pertains to abuse of the discovery process, which is not properly before the Court on this motion. Likewise, there is no indication that Rule 2.30 applies in this situation.

Conclusion

Based on the above, Defendant’s motion is **denied**. If Defendant would like to proceed with the motion to enter judgment in accordance with the terms of the Settlement Agreement, it should contest this tentative ruling and provide the Court and opposing counsel with a copy of the unredacted Settlement Agreement so the Court can enter judgment based on the complete Settlement Agreement.

15. 9:00 AM CASE NUMBER: C24-02009

CASE NAME: DANIEL RUBIO VS. RH OAK, INC.

*HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED CLASS ACTION COMPLAINT

FILED BY: RUBIO, DANIEL

TENTATIVE RULING:

Before the Court is Plaintiff's Motion for Leave to File Second Amended Class Action Complaint. The Court notes that this hearing is being held at the same time as the hearing on Defendant's motion to enforce the settlement agreement. As the two matters have related issues, the ruling relating to the motion to enforce is incorporated, and issues raised there may be discussed, herein – see line 14.

Counsel are ordered to appear. The Motion is **denied without prejudice** as discussed below.

Factual and Procedural Background

Plaintiff's counsel filed the original Class Action Complaint ("Complaint") on July 30, 2024, alleging nine employment related causes of action. The Complaint named Daniel Rubio as the named plaintiff and class representative. The operative First Amended Complaint was filed on December 9, 2024, which added a PAGA claim.

In March 2025, Plaintiff Daniel Rubio executed a Mutual Release and Settlement Agreement ("Settlement Agreement") with Defendant RH Oak, Inc. The Settlement Agreement calls for a payment to Plaintiff (discussed below) in return for Plaintiff filing a Request for Dismissal of the Complaint within 2 business days of the full execution of the Settlement Agreement – *i.e.* by March 15, 2026. Mr. Rubio has not filed a Request for Dismissal. Accordingly, Defendant filed a motion to enforce the settlement agreement – which the Court addresses at line 14 herein.

Notably, Plaintiff's counsel did not file an opposition to the motion to enforce the settlement agreement. Instead, on January 14, 2026, the filed the instant motion for leave to file a second amended complaint. Plaintiff's counsel contends this motion is "necessary because Mr. Rubio has resolved his individual claims and can no longer adequately serve as a class representative." (Notice at ii:10-11.)

Discussion

The Court is very concerned with the handling of this matter.

As discussed in the concurrent tentative ruling on Defendant's unopposed motion to enforce the settlement agreement (see Line 14), the named Plaintiff – Mr. Rubio – has apparently settled his individual claims with Defendant. Based on this settlement, Defendant moved to have the settlement agreement turned into a judgment and have the matter dismissed. As explained in the ruling on that motion, the fact that Mr. Rubio has settled his individual claims does not mean that the class action complaint and the PAGA cause of action should be dismissed. It does not even mean that Mr. Rubio cannot continue as the named plaintiff in this action.

It must be noted that Plaintiff's counsel did not file any opposition to the motion to enforce. Not even to argue that the case should not be dismissed even if Mr. Rubio's individual claims are settled. "Case law imposes ***fiduciary duties on*** the trial courts, ***class counsel***, and class representatives, who must

ensure the action proceeds in the class members' best interest." (*Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260, 566.) Failing to protect class members by not opposing a motion seeking to dismiss the complaint – especially where there is direct case law indicating that such a result based on the motion to enforce the settlement is improper (see Line 14) – is not living up to those duties.

Instead, Plaintiff's counsel filed the instant motion for leave to amend to remove Mr. Rubio as the named plaintiff and replace him with Arturo Cedillo Jr. – a person that apparently never worked for Defendant and does not actually want to participate in this litigation. Instead, it is alleged in the proposed amended complaint that Mr. Cedillo Jr. was employed by RH Las Inc. – and separate corporate entity "operating under the same DBA" as RH Oak Inc.

Defendant confirms that Mr. Rubio worked for RH Oak but never worked for RH Las. (Smith Decl. ¶ 4; Navarro Decl. ¶ 3.) They also confirm that Mr. Cedillo worked for RH Las but never worked for RH Oak. (Smith Decl. ¶ 11; Navarro Decl. ¶ 3.) Defendant also submits the declaration of Aldo Navarro, the CEO of RH Las, who indicates that he had a conversation with Mr. Cedillo in January 2026 – the same month the instant motion to leave to amend was filed. (Navarro Decl. ¶ 4.) Mr. Cedillo was calling to inquire about being re-hired by RH Las. (*Ibid.*) During that conversation, Mr. Navarro asked Mr. Cedillo about his being named the lead plaintiff in this lawsuit. (*Ibid.*) Mr. Navarro declares that Mr. Cedillo told him that he did not want to pursue a lawsuit against RH Las and had not authorized his name to be involved in a lawsuit. (*Ibid.*) He also attaches a text message purportedly from Mr. Cedillo confirming as such. (*Id.* Ex. A.)

In Reply, Plaintiff's counsel objects to the admissibility of Mr. Navarro's declaration and the exhibit attached thereto. They do not dispute that Mr. Cedillo has expressed his desire not to be included in this lawsuit. They do not provide a counter declaration or any evidence from Mr. Cedillo indicating otherwise. The statements outlined above can be considered statements against interest (Evid. Code 1230) or even a party admission (Evid. Code § 1220).

Even if the statements were inadmissible, the fact that Plaintiff's counsel does not dispute the content of the statements or present any contrary evidence gives the Court pause in not considering them. This is especially true given the apparent lack of communication Plaintiff's counsel has shown with its client.

The Complaint was filed on July 30, 2024, with the FAC filed on December 9, 2024. Mr. Rubio – the named plaintiff and client of Plaintiff's counsel - indicates in a letter submitted by Defendant that approximately four months after filing the complaint communication from Plaintiff's counsel became minimal to nonexistent. (Smith Decl. Ex. 1.) Plaintiff's counsel again objects to the admissibility of this evidence – but does not specifically dispute any facts contained therein.

The lack of communication appears to be confirmed by Plaintiff's counsel's own declaration which indicates that they "learned of Mr. Rubio's settlement shortly before the parties began meeting and conferring regarding amendment of the complaint," which started in November 2025. (Bokhour Decl. ¶ 12.) This is a full eight months after the settlement agreement was executed. There is no explanation as to why Plaintiff's counsel had not had any communication with the sole named plaintiff in this matter for over eight months and more likely close to a year given Mr. Rubio's statements of communication ceasing about 4 months after the complaint was filed.

Plaintiff's counsel argues that the potential issues raised by Defendants – namely adequacy of the named plaintiff – are not properly before the Court at this stage. It is true that there is a later procedure for class certification that addresses issues including adequacy of the representative party

as well as the adequacy of counsel. As noted above, the Court has a duty to the class members to “ensure the action proceeds in the class members’ best interest.” (*Hernandez*, supra, 4 Cal.5th at 566.) This would include making sure that leave to amend would only be granted where there is a likely chance that the amendments would protect the class. Given the above facts and arguments, that is not the case here.

“Plaintiffs seeking class certification have the burden of proving the adequacy of their representation by a member of the putative class.” (*Jones v. Farmers Ins. Exchange* (2013) 221 Cal.App.4th 986, 998.0 “To establish the proposed class representatives are up to this important role, plaintiffs must provide evidence, typically declarations, showing their ‘desire[] to represent the putative class or that they underst[and] the obligation of serving as class representatives.’” (*Imperial County Sheriff’s Assn. v. County of Imperial* (2023) 87 Cal.App.5th 898, 919.)

Here, the Court already has indications that the proposed class representative will not be able to fulfill his duties – given he has already expressed a desire not to be party to this lawsuit and did not authorize his name to be involved. It would not be in the best interests of the class to allow this amendment knowing that class certification could likely be denied for failure to have an adequate representative.

The Court is also concerned with Plaintiff’s counsel’s actions (or inactions) and their ability to prosecute this case properly and to protect the class members. A “primary criterion” for determining whether the class representative and counsel have adequately represented a class is determining whether they have “vigorously and tenaciously protected the interests of the class.” (*Simons v. Horowitz* (1984) 151 Cal.App.3d 834, 846 citation omitted.) The evidence indicates this is not the case.

Despite this case being over two years old Plaintiff’s counsel affirms that it “remains at an early stage,” and “discovery has been minimal...” (Bokhour Decl. ¶ 13.) They also admit that they did not communicate with the named plaintiff for almost a year and did not even know that he had settled his individual claims for over eight months. The ‘minimal discovery’ appears to be a single interrogatory served on Defendant on August 8, 2025. (Smith Decl. in Support mtn to enforce, ¶ 13-14, Ex. B.) In other words, it appears that Plaintiff’s counsel has done nothing to prosecute this matter and has not even been in communication with the only named plaintiff during most of the time this matter has been pending.

“In the class action context, the Court has an obligation to closely scrutinize the qualifications of counsel to assure that all interests, including those of as yet unnamed plaintiffs are adequately represented.” (*Cal Pak Delivery, Inc. v. United Parcel Services, Inc.* (1997) 52 Cal.App.4th 1, 12.) Attempting to amend to name a representative that has already indicated that he does not want to participate does not show that they are adequately representing the interests of the proposed class.

In addition to the above, there is the substantive issue related to the Defendants in the case. Currently, RH Oak is the only defendant as it is the employer of Mr. Rubio – who is the only named representative. Plaintiff’s counsel proposes to remove Mr. Rubio and replace him with Mr. Cedillo who has never worked for RH Oak. To get around this problem, Plaintiff’s counsel puts forth a ‘joint-employer’ theory. This proposed amendment completely changes the basis and scope of the case – as well as the potential class. The proposed amended complaint also fails to properly allege facts sufficient to show joint employment.

“A joint employer liability claim (or joint employment case) involves a person or entity that is alleged to share the legal obligations of another employer **by exercising significant control over** the other

employer's employees." (*Mejia v. Roussos Construction Inc.* (2022) 76 Cal.App.5th 811, 820.) There are no allegations indicating such. Instead, there is a single conclusory allegation that "Defendants were joint employers for all purposes of Plaintiff and all members of the Classes." (§ 14.) This allegation contains no facts to support this contention.

PAGA

Defendant argues that the proposed amended complaint appears to continue the PAGA cause of action based on the fact that the caption and the footer contain reference to PAGA.

"As an initial matter, the allegations in the body of the complaint, not the caption, constitute the cause of actions against the defendant." (*Davaloo v. State Farm Ins. Co.* (2005) 135 Cal.App.4th 409, 418 *citing Falahati v. Kondo* (2005) 127 Cal.App.4th 823, 829) The California Supreme Court long ago held that the "subject matter of an action and the issues involved are determinable from the facts pleaded, rather than from the title or prayer for relief." (*Coffelt v. Coffelt* (1964) 229 Cal.App.2d 659, 665 *quoting Standard Brands of California v. Bryce* (1934) 1 Cal.2d 718, 721.)

It is clear the PAGA cause of action is removed from the proposed amended complaint. Plaintiff's counsel's reply makes clear that the "substantive PAGA cause of action was removed." (Reply at 6:13.)

Summary and Conclusion

Over two years into this matter and Plaintiff's counsel is seeking leave to utterly change the focus and scope of this litigation while having done just about nothing to move it forward to this point. The Court cannot allow this delayed amendment that appears to have minimal change of protecting the putative class members given the issues raised regarding the adequacy of representation.

The Court is mindful, however, that the California Supreme Court has made clear that if a named plaintiff can no longer suitably represent the class, the Court should afford plaintiffs the opportunity to amend the complaint to add new individual plaintiff(s). (*La Sala v. American Sav. & Loan Assn.* (1971) 5 Cal.3d 864, 872.)

Accordingly, the Court **denies Plaintiff's motion without prejudice.**

Plaintiff's counsel will have 90 days from notice of entry of the order on this motion to locate a new representative plaintiff that was employed by Defendant RH Oak during the relevant time to replace Mr. Rubio and seek leave to amend to add that person.

Evidentiary Objections

Objection 1: Overruled

Objection 2: Overruled

Objection 3: Overruled

Objection 4: Overruled

Objection 5: Overruled

16. 9:00 AM CASE NUMBER: C24-02020
CASE NAME: BRANDON VARISE VS. MARZBAN RAD
*HEARING ON MOTION IN RE: SET ASIDE ENTRY OF DEFAULT
FILED BY: RAD, MARZBAN

TENTATIVE RULING:

Defendant Marzban Rad filed a Notice of Appeal. This case is stayed pending appeal. This hearing is off calendar.

17. 9:00 AM CASE NUMBER: C25-00276
CASE NAME: CHRISTOPHER SEARS, PHD VS. VIVIANE SIINO, PHD
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: SIINO, VIVIANE, PHD

TENTATIVE RULING:

Defendant Vivanne Siino, Ph.D's demurrer to the first amended complaint is **sustained with leave to amend**. Plaintiff has 20 days from notice of entry of order on this ruling to file and serve a second amended complaint.

Plaintiff Christopher Sears, Ph.D. is suing for libel based upon statements that Plaintiff made to third parties, including family members and Plaintiff's professional contacts. Previously the Court sustained Defendant's demurrer to this cause of action with leave to amend. Defendant now demurs to the first amended complaint, arguing that it does not state sufficient facts for a valid cause of action.

Allegations

Here Plaintiff is suing for libel and alleges that Defendant made the following defamatory statements regarding financial abuse and child abuse.

The financial abuse allegations are that Defendant had to open a secret bank account to hide money from Plaintiff and that when Plaintiff discovered the account, he hit Defendant several times. (FAC ¶¶8-9.) In discovery in a related proceeding, this account was identified as a Bank of America checking account x2406. (FAC ¶8.)

The child abuse allegations are that Plaintiff hit one of the parties' children twice on the head, grabbed her by the shoulders and lifted her off the chair and then shoved her onto a chair, pushing down against her shoulders. (FAC ¶10.)

Plaintiff alleges that, on information and belief, these statements were published to third parties, including Defendant's brothers Marc, Frank, Dan and other family members, and to one or more non-family recipients. (FAC ¶¶11-12.)

As to falsity, Plaintiff alleges that the financial statements are false because there is no Bank of America checking account x2406 and that the family court found there was no coercive control and rejected the "secret account" testimony for lack of specifics. (FAC ¶¶13, 14.) As to the child abuse statements, Plaintiff alleges that the family court made findings regarding Plaintiff's conduct, including

that the treatment of the child was “corrective behavior and discipline and not abuse” and that the child was not believable. (FAC ¶14.)

Plaintiff alleges that these statements of abuse reached third parties in Plaintiff’s family and social circles and that he suffered general damages, including injury to reputation, humiliation, shame, mortification, hurt feelings, mental anguish, and emotional distress. (FAC ¶16.)

Analysis

Defamation includes both libel and slander. (Civil Code section 44.) “ ‘ “The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage.”’ [Citations.] ‘In general, ... a written communication that is false, that is not protected by any privilege, and that exposes a person to contempt or ridicule or certain other reputational injuries, constitutes libel.’ [Citation.]” (*Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1259-1260.)

Defendant argues that Plaintiff has not sufficiently alleged publication, falsity and damages.

Publication

Defendant argues that Plaintiff has alleged publication “on information and belief” but without alleging facts that would lead Plaintiff to believe the allegations are true. “A ‘ “[p]laintiff may allege on information and belief any matters that are not within his personal knowledge, *if he has information leading him to believe that the allegations are true*” ’ [citation], and thus a pleading made on information and belief is insufficient if it ‘merely assert[s] the facts so alleged without alleging such information that “lead[s] [the plaintiff] to believe that the allegations are true” ’ [Citation.]” (*Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-1159.)

In opposition, Plaintiff points to a statement in Defendant’s meet and confer email where the attorney stated that publication was specifically pled as to the email to brother Marc. That statement did not address the “information and belief” allegations, which was raised elsewhere in the meet and confer.

Here, Plaintiff has alleged publication based upon information and belief, but did not allege what facts caused him to have this belief. The demurrer is therefore **sustained** with leave to amend on this ground.

Defendant also argues that Plaintiff has alleged that the statements were sent to non-family recipients, but have not alleged who those recipients are, nor what exactly was stated in the emails or how they were sent. Most of this information is available through discovery and the Court does not believe that Plaintiff is required to provide the exact details of every email that is alleged to have been sent out in his complaint.

Falsity

Defendant argues that Plaintiff has not alleged that the statements were false and if only a small portion of the statement is shown to be false that statement must also be defamatory to be

actionable.

Both sides argue about what happened in the DVRO hearing in family court and what findings that court made. On demurrer, the Court is not going to engage in a detailed analysis of what exactly was found in the family court proceeding and whether Plaintiff's or Defendant's characterization of that proceeding is more accurate. Rather the question here is whether Plaintiff has alleged that the statements are false.

As to the financial allegations, Plaintiff alleges that the account information was false, but does not alleged that the remainder of the statement was false. Thus, Plaintiff fails to allege that the claim that he hit Defendant is false. A false reference to a specific kind of bank account, such as Bank of America checking x2406, is not defamatory in this context. Thus, Plaintiff must show that some other portion of the statement regarding the financial abuse is false in order to state a claim for libel.

As to the child abuse allegations, Defendant argues that the allegations of falsity are based upon the court's findings and do not include allegations that the conduct did not occur. Here, Plaintiff has failed to allege that he did not hit his child, only that the family court found it was not abuse. Such an allegation is insufficient to allege falsity of Defendant's statement.

Therefore, the demurrer is sustained with leave to amend for Plaintiff to allege that at least one of the defamatory statements was false.

Damages

Defendant argues that Plaintiff has not alleged facts showing that the defamatory statements caused him injury.

Previously, Plaintiff had not alleged the statements with sufficient particularity, so it was unclear if they were libelous on their face. In the prior demurrer the Court analyzed whether Plaintiff had alleged special damages because it was not clear if there would be assumed damages. The Court then sustained with leave to amend for Plaintiff to either allege his special damages with sufficient particularity or allege a statement that is libelous on its face.

In amending his complaint, Plaintiff provided details on the alleged statements, and the Court finds that allegations that Plaintiff hit Defendant and/or his child are libelous on their face. Since Plaintiff has now alleged statements that are libelous on their face, damages are assumed and thus, it is sufficient for Plaintiff to allege that he was damaged. The demurrer on this ground fails.

Defendant also demurs arguing that facts showing republication are insufficient. Here, Defendant is alleged to be the original defamer and is not being sued for republication of another's statements, but for making her own statements. The demurrer on this ground fails.

18. 9:00 AM CASE NUMBER: C25-00925
CASE NAME: KURTIS MILLHOLLIN VS. MICHAEL ALLIO
HEARING ON SUMMARY MOTION FILED BY KURTIS MILLHOLLIN
FILED BY: MILLHOLLIN, KURTIS
TENTATIVE RULING:

Plaintiff Kurtis Millhollin's unopposed Motion for Summary Adjudication of his Second Cause of Action for Breach of Contract against Defendant Michael Allio is granted.

Plaintiff Kurtis Millhollin alleges that he and Defendant Michael Allio entered into a \$150,000.00 loan agreement, and Defendant subsequently failed to pay the remaining \$115,000.00 balance of the loan. Plaintiff moves for summary adjudication of his second cause of action for breach of contract, arguing that each element of the claim has been established by operation of law through Defendant's deemed admissions. (See UMF Nos. 1–28.) Specifically, Plaintiff contends that on or about January 9, 2026, the Court granted Plaintiff's motion to deem requests for admission admitted and that Defendant has judicially admitted that each element of Plaintiff's cause of action for breach of contract has been proved as required by Code of Civil Procedure section 437c, subdivision (p)(1), and there is no defense to the cause of action.

A plaintiff moving for summary judgment "bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Where, as here, the moving party is the plaintiff, he must prove "each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc., § 437c, subd. (p)(1).) Summary judgment is properly granted only if the moving party's evidence establishes that there is no issue of material fact to be tried. (*Lipson v. Superior Court* (1982) 31 Cal.3d 362, 374.)

To prevail on a cause of action for breach of contract, a plaintiff must prove the existence of a contract, plaintiff's performance or excuse for nonperformance, defendant's breach, and resulting damages. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) Under Code of Civil Procedure section 2033.410, any matter admitted in response to a request for admission is conclusively established against the party making the admission. A deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein. (*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983.) Absent leave of court to amend or withdraw the admission, no contradictory evidence may be introduced. (*Murillo v. Superior Court* (2006) 143 Cal.App.4th 730, 736.)

Here, the deemed admissions conclusively establish each requisite element of the breach of contract claim against Defendant. The admissions establish that Defendant executed a written Promissory Note dated March 7, 2024, promising to repay the principal sum of \$150,000.00 on or before April 8, 2024 (RFA Nos. 15, 16, 27); that Plaintiff fully performed under the agreement by delivering the \$150,000.00 loan proceeds at Defendant's direction (RFA No. 17); that Defendant breached the agreement by failing to repay the loan on or before the April 8, 2024 maturity date (RFA Nos. 16, 24); and that only \$35,000.00 of the principal was ever repaid, leaving an outstanding balance of \$115,000.00. (RFA Nos. 23, 24.)

Plaintiff has satisfied his initial burden under Code of Civil Procedure section 437c, subdivision (p)(1), to prove each element of the cause of action, shifting the burden to Defendant to demonstrate the existence of a triable issue of material fact. Defendant has filed no opposition and has not sought to withdraw or amend the deemed admissions. Therefore, Defendant has not met his burden of production to show a triable issue of fact.

Plaintiff is also entitled to statutory prejudgment interest on the \$115,000 principal balance. Because the promissory note does not stipulate to a legal rate of interest, the obligation bears interest at the rate of ten percent (10%) per annum after the breach. (Civ. Code, § 3289, subd. (b); Millhollin Decl., ¶ 3, Ex. 1.) The Court calculates the per diem interest rate at \$31.51 (\$11,500 annual interest divided by 365 days). For the 878 days from the April 8, 2024 breach through the September 2, 2026 hearing date, prejudgment interest totals \$27,665.78, resulting in contract damages of \$142,665.78.

Additionally, under the Court's January 9, 2026 order, Defendant was ordered to pay discovery sanctions in the amount of \$1,620.00, which remain unpaid. (Millhollin Decl., ¶ 4.) Because an order imposing monetary sanctions is enforceable in the same manner as a money judgment under the Enforcement of Judgments Law (Code Civ. Proc., § 680.010 et seq.; *Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 615), the Court will add the \$1,620 sanctions award to the \$142,665.78 contract damages subtotal, **resulting in a total of \$144,286.78.**

Plaintiff shall prepare and submit a proposed order.

19. 9:00 AM CASE NUMBER: C25-03012
CASE NAME: I'YOSHI BARNES VS. DOES 1 TO 30
***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S COMPLAINT**
FILED BY: GUARDIAN/KW HILLTOP LLC
TENTATIVE RULING:

Defendant Guardian/KW Hilltop LLC's Motion to Strike punitive damages allegations is **granted with leave to amend**. Defendant shall prepare the order and give notice. Plaintiff has 15 days from service of notice of entry to amend the complaint. If Plaintiff cannot do so within this timeframe, Plaintiff may later move for leave to amend if facts supporting punitive damages are uncovered during discovery.

Background

Plaintiff I'Yoshi Barnes brings this action against Defendant Guardian/KW Hilltop LLC and Does, alleging claims arising from a residential tenancy at 3400 Richmond Parkway, Apartment 4109, in Richmond, California (the Property). (Compl. ¶¶ 1-2, 9.) Plaintiff alleges that Defendant placed her in a different unit than the one she applied for without allowing a walkthrough. (*Id.* ¶ 12.) After taking possession, Plaintiff observed that the unit was dirty and smelly, the carpet was stained, the counters had cuts and paint on them, and a bedroom wall was softened and bloated. (*Id.* ¶ 13.) Plaintiff allegedly notified Defendant of these conditions and requested repairs, but Defendant did not make them. (*Id.* ¶ 14.)

Plaintiff alleges that the apartment flooded due to heavy rain on November 11, 2024, causing water

intrusion and “biological contaminants.” (Compl. ¶ 15.) In response to the flooding, Defendant took affirmative steps by lifting the carpet, removing the padding, and installing two large fans and a dehumidifier. However, Defendant left the drying equipment running the unit over a month, increasing Plaintiff’s PG&E bill. (*Id.* ¶¶ 15, 20.) Due to alleged uninhabitable conditions, Plaintiff ceased residing at the property on December 4, 2024, and began “couch surfing” with friends and coworkers, while Defendant allegedly failed to inform her of the City of Richmond Relocation Statute. (*Id.* ¶¶ 16–17.)

On January 24, 2025, the parties agreed to an early lease termination waiving January 2025 rent and early termination fees, which Defendant failed to honor. (Compl. ¶ 19.) On January 29, 2025, Plaintiff requested a rent reduction for November and December 2024 citing increased utility charges caused by the drying equipment. (*Id.* ¶ 20.) Plaintiff ultimately vacated the premises on June 29, 2025. (*Id.* ¶ 21.) Throughout the complaint, Plaintiff asserts that Defendant failed and refused to make necessary repairs, collected rent despite substantial defects, and failed to adequately maintain the property. (*Id.* ¶¶ 22, 27-28, 40, 47, 50-52, 60.)

Defendant Guardian/KW Hilltop, LLC now moves to strike punitive damages allegations in paragraphs 23, 24, 70, 71, and 72, as well as Paragraph C of the Prayer, on grounds that the complaint does not plead facts sufficient to support malice, oppression, or fraud under Civil Code section 3294, and fails to plead facts showing that any officer, director, or managing agent personally engaged in, authorized, or ratified the wrongful conduct.

Relying in part on *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903 and *Penner v. Falk* (1984) 153 Cal.App.3d 858, Plaintiff responds that a residential tenant may state a viable claim for punitive damages by alleging that a landlord failed to rectify known, long-existing physical conditions such as ongoing water intrusion and biological contamination. Plaintiff also argues the Richmond Anti-Harassment Ordinance specifically provides for punitive damages when its provisions are violated. If the Court finds the allegations insufficient, Plaintiff requests leave to amend.

Meet and Confer

Prior to filing a motion to strike, the moving party is required to meet and confer with the party who filed the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the motion to strike. (Code Civ. Proc. § 435.5.)

Here, Defendant offers the declaration of its counsel Elmira Tofanyan attesting to meet and confer efforts prior to the filing of the instant motion to strike. Specifically, Tofanyan states on November 20, 2025, the parties met and conferred by telephone regarding the issues now raised on motion to strike. (Tofanyan Decl., ¶2.) Thus, Defendant has fulfilled the meet and confer requirement.

Legal Standard

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) Immaterial or irrelevant

matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (*Id.*, § 431.10, subds. (b)(1)-(3).)

Discussion

Defendant argues that the complaint fails to state facts sufficient to support a claim for punitive damages against a corporation. The Court agrees, and will grant Defendant's motion to strike with leave to amend.

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code Section 3294. These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code § 3294 (a).) Civil Code section 3294(c) defines malice as conduct "intended by the defendant to cause injury to the plaintiff," or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." "'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) Despicable is a powerful term used to describe circumstances that are "base," "vile," or "contemptible." (*Coll. Hosp. v. Superior Ct.* (1994) 9 Cal.4th 704, 726.) The statute "plainly indicates that absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. An additional component of 'despicable conduct' must be found." (*Id.*)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citation.]" (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]" (*Grieves v. Superior Ct.* (1984) 157 Cal.App.3d 159, 166, fn. omitted.)

Generally, punitive damages are available for breach of implied warranty of habitability where a landlord willfully and consciously disregards a known uninhabitable condition. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 92 925-926.) For example, in *Stoiber*, the court found that a plaintiff could recover punitive damages for numerous persistent uninhabitable conditions of which she repeatedly notified the landlord defendants. (*Id.* at 921.) The plaintiff alleged specific uninhabitable conditions, including heavy cockroach infestation, broken interior walls, broken deteriorated flooring on front porch, falling ceiling, deteriorated, faulty electrical wiring, lack of proper plumbing connection to sewage system in bathroom, sewage under bathroom floor, leaking roof, broken windows, and fire hazard. (*Ibid.*) Despite notice, the defendants knowingly, intentionally and willfully failed to correct the defective conditions by not even attempting repairs, except on one occasion where they sent a plumber in response to a complaint about a toilet. (*Id.* at 913; see also *Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal.App.4th 1281 [punitive damages were appropriately pled against a landlord that had turned off tenant's utilities and prevented the tenant from returning to the property].)

Here, the facts alleged do not rise to the level required for punitive damages. Instead, Plaintiff alleges that upon moving in, the unit was "dirty and smelly," with a stained carpet, painted counters, and a "softened and bloated" bedroom wall. (Compl. ¶ 12.) Following a flood on November 11, 2024, Defendant actually responded by sending maintenance to pull back the carpet, remove the padding, and install two large fans and a dehumidifier, though Plaintiff claims the equipment was left running for over a month and increased her utility bill. (*Id.* ¶¶ 14, 19.) Plaintiff also claims that Defendant engaged in a "pattern of harassment" and retaliated against Plaintiff, but provides no supporting factual detail beyond the unmade repairs and a failure to honor an early lease termination agreement. (*Id.* ¶¶ 18, 34, 71.) At most, these allegations describe a flawed remediation effort and a dispute over lease obligations, which sound in ordinary negligence and contract rather than despicable, oppressive, or malicious conduct. Further specific facts are required to establish an entitlement to punitive damages under Civil Code section 3294.

Moreover, although Plaintiff characterizes the property conditions as "longstanding defects" and mentions "biological contaminants," the facts alleged do not support an inference of conscious disregard for tenant safety. (Compl. ¶¶ 15, 72.) Less than a month elapsed between the November 11 rainstorm and December 4, 2024 when Plaintiff left the unit to couch surf, and during which time Defendant had drying equipment deployed in the unit. (*Id.* ¶¶ 14–16.) Instead, the allegations describe an inadequate or delayed remediation process, a failure to credit or reduce rent for increased utility costs, and the breach of an agreement to waive rent and termination fees. These matters sound in negligence and breach of contract and do not describe despicable, oppressive, or malicious conduct on the part of Defendant.

Plaintiff also does not plead an adequate basis for corporate liability. Civil Code section 3294(b), provides an employer cannot be liable for punitive damages based on its employee's acts "unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." Furthermore, "[w]ith respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (*Id.*) Thus, Defendant can only be liable for punitive damages if the bad acts were either (1) committed by its officer, director, or managing agent; (2) ratified or approved by its officer, director, or managing agent; or (3) had advanced knowledge of the unfitness of its employee. (*College Hospital Inc. v. Superior Court, supra*, 8 Cal.4th at 723.)

Here, the complaint does not identify any individual employee, supervisor, or manager by name or title, nor does it allege facts demonstrating that any specific actor directed or ratified the alleged conduct with the required authority. Instead, Plaintiff recites statutory language and asserts that unnamed Does were officers, directors, or managing agents of Defendant who were unfit or ratified the conduct. (Compl. ¶ 24.) This does not satisfy the heightened standard for pleading punitive damages against a corporation.

Accordingly, the motion to strike punitive damages is **granted** with leave to amend.

20. 9:01 AM CASE NUMBER: C24-00285

CASE NAME: PABLO BELTRAN DIAZ VS. IMPORT MOTORS, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM
INTERROGATORIES, SET NUMBER TWO RE: NOELLE ELIZABETH LUCAS**

FILED BY: BELTRAN DIAZ, PABLO ROBERTO

TENTATIVE RULING:

The tentative ruling applies to Lines 20-22. These discovery motions were vacated and referred to a discovery referee on August 26, 2026. No appearance is required at the hearing on September 2, 2026.

21. 9:01 AM CASE NUMBER: C24-00285

CASE NAME: PABLO BELTRAN DIAZ VS. IMPORT MOTORS, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR
PRODUCTION OF DOCUMENTS, SET NUMBER TWO RE: IMPORT MOTORS, INC.**

FILED BY: BELTRAN DIAZ, PABLO ROBERTO

TENTATIVE RULING:

See Line 20.

22. 9:01 AM CASE NUMBER: C24-00285

CASE NAME: PABLO BELTRAN DIAZ VS. IMPORT MOTORS, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR
PRODUCTION OF DOCUMENTS, SET TWO RE: NOELLE ELIZABETH LUCAS**

FILED BY: BELTRAN DIAZ, PABLO ROBERTO

TENTATIVE RULING:

See Line 20.